

1.

CASE #	CASE NAME	HEARING NAME
CVME2509109	GOBALT V. HERNANDEZ	CMC AND OSC

Tentative Ruling: If no appearance is made, then the case will be dismissed without prejudice—no LR 3116 declaration was filed.

2.

CASE #	CASE NAME	HEARING NAME
CVME2602183	ACOSTA GARCIA VS FORD MOTOR COMPANY	DEMURRER

Tentative Ruling: Overrule the demurrer with 10 days to Answer.

The Complaint alleges the Vehicle had a defect with its 10R80 Transmission, Ford had exclusive knowledge of said defect through testing data, consumer complaints, aggregate warranty data, pre-market testing, and other internal information, but failed to disclose such information; Plaintiffs would not have purchased the Vehicle had he known of the defects; and Plaintiff suffered damages as a result. (Compl., ¶¶12-40, 42, 47, 57, 142-155.) This is sufficient for pleading purposes.

In addition, the Complaint alleges the parties entered into a warranty contract in Lake Elsinore. (Compl., ¶¶6, 10, 104.) Accordingly, Plaintiffs sufficiently alleged that the parties entered into a contractual arrangement to support that a transactional relationship existed to impose a duty of disclosure upon Ford.

The Complaint pleads ratification generically: “All acts of corporate employees as alleged were authorized or ratified by an officer, director or managing agent of the corporate employer.” (Compl., ¶8.) However, the ratification is supported by the fact that Ford had knowledge (Compl., ¶¶16-40) and active concealment (*id.* at 47-53), i.e. impliedly demonstrating that Ford’s corporate officers were involved. This is sufficient for pleading purposes.

Also, the Complaint alleges the 10R80 transmissions stalled in numerous Ford vehicles, including Plaintiffs’ Vehicle, were defective. (Compl., ¶¶12-15.) The Complaint further alleges Ford had exclusive knowledge of the transmission defect as early as March 2018, if not earlier. (*Id.* at ¶¶16-40.) This is sufficient.

Finally, based on *Rattagan*, the economic loss rule does not bar Plaintiff’s claims, which arise out of the contractual relationship discussed above.

3.

CASE #	CASE NAME	HEARING NAME
CVME2604840	MARTINEZ VS YAZEJI	DEMURRER

Tentative Ruling: Deny the request for judicial notice. Overrule the demurrer to the 2nd (unjust enrichment) cause of action. Sustain the demurrer to the 1st (breach of contract), 3rd (professional negligence), and 4th (misrepresentation) causes of action with 20 days leave to amend.

Plaintiff asks the Court to take judicial notice of records from the City, including an application for minor plot plan for the Property, and the City's 6/10/25 comments on the application. While these records are generally subject to judicial notice, Plaintiff failed to provide the Court with copies of the documents. The Court cannot take judicial notice of documents that are not before it.

While Defendants specially demur to the Complaint on the ground of uncertainty under C.C.P. § 430.10(f), they fail to explain how any of the claims are uncertain such that they cannot reasonably determine what issues must be admitted or denied, or what claims are directed against them. (*Khoury, supra*, 14 Cal.App.4th 612, 616.)

The Complaint fails to attach the contract upon which the breach of contract cause of action is based and fails to set forth the terms verbatim.

At the pleadings stage a plaintiff is allowed to plead alternative legal theories—unjust enrichment, here. (*Williams v. Southern California Gas Co.* (2009) 176 Cal.App.4th 591, 598.) It is not proper for the judge to force upon the plaintiff an election between those causes which he has a right to plead. (*Tanforan v. Tanforan* (1916) 173 Cal.270, 274.)

Plaintiff seeks only economic damages, and does not allege any personal injury or damage to property. (See, Complaint, generally.) Thus, her claim sounds solely in contract, and any tort recovery sought (i.e., for negligence) is barred by the economic loss rule.

Lastly, in her misrepresentation cause of action, Plaintiff alleges only that “Defendants represented that the project was progressing and that plans were being prepared for approval,” but “in reality, the application remained incomplete and inactive.” (Complaint at ¶¶ 42-45.) Plaintiff fails to allege who made the alleged misrepresentations, and what authority he/she had to bind Geoquake; how the statements were made (orally or in writing); or when the statements were made.